

PUBLIC WORKS AGREEMENT SUBCONTRACT

Project: Cedar Park Middle School Seismic Upgrade, Beaverton, OR

Contractor: P&C Construction

Subcontractor: Bedrock Concrete Cutting

This Public Works Agreement is subject to prevailing wage rates.

ARTICLE 1 SCOPE OF WORK

Subcontractor shall furnish all labor, equipment and tools necessary to perform flat-saw cutting of approximately 2,207 square feet. The Subcontractor's Work shall be performed as outlined in this agreement and the project schedule.

ARTICLE 7 SCHEDULE AND PREMIUM TIME

7.a The project schedule incorporated at signing reflects a baseline dated 2/25/26 and is based on a 58-hour work week.

7.b The schedule may change after signing and Subcontractor shall sequence its work to conform to the current schedule as updated by Contractor in Procore and Smartsheets.

7.c Subcontractor has included all costs, including overtime and premium time required to perform the work outlined in this agreement and the project schedule. Overtime as identified in the schedule is the responsibility of the Subcontractor.

7.d Weather days do not extend the schedule.

ARTICLE 8 MOBILIZATION AND STANDBY

Two (2) mobilizations are included. Additional mobilizations shall be billed at \$350 each. Standby time shall be billed at \$150/hr per crew member.

ARTICLE 12 PAYMENT

Subcontractor shall be paid within 15 days after Contractor is paid by the Owner (pay-when-paid). Retainage of 10% shall be withheld until close-out. Invoices must be submitted by the 25th of the month and reference the job number.

ARTICLE 17 INDEMNIFICATION

To the fullest extent permitted by law, Subcontractor shall indemnify, defend and hold harmless the Contractor from any and all claims arising out of the work, including attorney's fees.

ARTICLE 20 INSURANCE

Subcontractor shall name Contractor and Owner as additional insured on a primary and non-contributory basis, with waiver of subrogation. Commercial General Liability and umbrella coverage required.

ARTICLE 25 INCORPORATED DOCUMENTS

The following are incorporated by reference: the Prime Contract, the General Conditions, and Specification Sections 02 41 00 and 02 41 19. See Exhibit A.

ARTICLE 30 CHANGE ORDERS

No change order shall be valid without prior written approval from the Contractor's Project Manager. Notice of any claim must be provided within 48 hours. No verbal approvals from superintendents shall be binding. Markup limited to 10% labor and 10% equipment.

ARTICLE 33 SLABS / FINISH

No overcutting; slabs to be polished concrete.